Project 4: Client Letter

Victoria Lee

UMGC: University of Maryland Global Campus

LGST 201: Legal Writing

Primary Instructor Louise Gussin

3/1/2025

Alice Chong, Chong & Associates
12345 Lombard Street
Baltimore, MD 21201
(410) 555-5555

March 1, 2024

Mary Hastings
4583 Orchard Avenue
Evans, MD 21202

Dear Ms. Hastings:

I hope you've been well. Following up the interview with Attorney Alice Chong, a paralegal, you've told us that you want to pursue a personal injury case due to a slip-and-fall incident at Maryland and monetary compensation for your injuries, lost wages, and pain and suffering. My main goal of writing this to you is to clarify your case, discuss the law in Maryland with slip-and-fall incidents, analyze whether you can be compensated, and provide any other information involved. Incidents like slip-and-fall cases depend on the state and the criteria, where Maryland is specific on whether or not a property owner is liable for your injuries sustained as an invitee. As you read this letter, if you find any other additional information to assist you in your case, please do so.

Under the Maryland slip-and-fall law, invitees are allowed to use the property safely, and the property owner must ensure it is safe for invitees. It also means that the property owners must be aware of the hazard to cause the incident or fail to provide a safe place for invitees if seen beforehand. There are a few parts that the courts will consider when deciding whether the property owner is liable for your injuries. The first part of the slip-and-fall cases is that the property owner had notice of a hazardous condition before the day you slipped and fell. In other words, a property owner has constructive or actual notice of a hazard that caused the fall. To file a liability successfully against the property owner, you must prove that the property owner had notice of the hazardous condition and failed to address it—either by warning invitees, removing the hazard, or remedying the situation promptly. This means that the property owner knows a hazardous condition before the day you slipped and fell. This includes satisfying elements of negligence law: duty, breach, causation, and damage. The law of negligence is a legal principle of the tort law that holds parties liable for the harm they cause when they fail to act as a reasonable person would. I will help you prepare for this, but it must also demonstrate that a property owner had a small period to remove or warn the hazard to prevent the injuries sustained. Then, as mentioned previously, a property owner may be held liable for the injuries of an invitee, by demonstrating that the property owner failed to correct a hazardous situation that resulted in an invitee sustaining injuries on the property. When notice is important for the court and me to analyze the case, a property owner has no obligation to constantly inspect their property for

hazardous conditions. I want to point out that the court has held that if a property owner failed to inspect for hazards, it is not sufficient evidence to prove constructive notice.

I will now address the facts of your case based on the interview. With your provided information, it shows that you were walking your dog at the local park owned by the Gilford Pines Condominium Association where you slipped on black ice and broke your right arm. Although it had snowed two days before, the asphalt sidewalks had been cleared of the snow and sanded. Even though the sidewalks had been cleared of snow a few days prior, there were no witnesses due to the empty park and you sought medical treatment at Gilford County Hospital to treat your injuries with an x-ray and casting. Afterward, you then reported the incident to the Gilford Pines Condominium Association and contacted Chong & Associates for legal advice, hence the interview previously done. Using the rules beforehand, it demonstrates that your case is similar to three similar past cases that the court may apply to determine the outcome of your case. The first case, *Deering Woods*, the court held that there was no sufficient evidence of the property owner's notice of black ice on the pathway where an invitee fell and sustained injuries. Similarly to your scenario, an invitee slipped and fell on ice on the property owner's walkway, and the property owner cleared snow from the walkway before the invitee's fall. There was nothing unusual about the passing of water over the pathway by a nearby drainage, nor had there been no prior complaints of ice, accidents on ice, or repeated ponding water over the past 20 winters. The court concluded that the property owner was not required to conduct continuous inspections to determine whether ice had formed on the walkway as the property owner had removed the most recent snowfall from the pathway, no unusual inspections, and no prior reports about the hazard at the site of the accident over the past 20 winters. Similarly, in the second case, *Joseph,* the court held that the invitee failed to prove the property owner and the manager of the building had constructive notice of the slippery steps before the fall. In this case, the invitee received an injury by slipping on a translucent "oily substance" on the property owner's stairs; there were no witnesses to see any substances on the stairs before the fall; the area was regularly inspected and cleaned, including the week before the incident; no substance was observed on the stairs during recent inspections and cleaning; the property manager inspected the stairs the day before the fall and saw nothing on the stairs. The court concluded that the mere existence of a substance on the stairs was not enough to establish the property owner's liability, since the area was regularly inspected and cleaned with no substances observed, the invitee could not prove how long any substance had been on the floor, and that the property owner was not required to continually inspect the stairs for hazards. The third case also has the same reasons as before in *Maans*, the court held that the invitee failed to prove how long the liquid had been on the floor before the fall, demonstrating the property owner's notice of the hazard on the store floor. In this case, an invitee slipped and fell on a wet floor and failed to establish how long the liquid had been on the floor before she fell or how long it may have been there. The court concluded on several notes: neither the injured party nor a witness saw the liquid on the floor, and there was no evidence that employees noticed it or how long the liquid had been on the floor, and the injured party's clothes were dry after the fall. The court also concluded that even if the store had conducted reasonable

inspections before the fall, the store would not have detected the hazard since assuming the time length or how the hazard conditions existed was not sufficient evidence to prove it led to the causation of foreseeable injuries before the accident. These three cases illustrate the possible conditions that the court will consider in slip-and-fall cases, where a property owner's liability depends on whether they had notice of the hazardous condition and the reasonableness of their inspections. The courts focused on the timing and the owner's knowledge of the hazard, emphasizing that an owner is not expected to continuously inspect conditions like ice or slippery substances without notice of their existence.

I will now analyze how your case is relevant to these laws and the three cases. When applying the principles of these cases to the facts of your case, it becomes clear that Gilford Pines Condominium Association did not have actual or constructive notice of the black ice that caused your fall. In the first case, it is similar to your scenario, with regular inspections by clearing snow from the walkway showing no reports or complaints of hazardous icy conditions before your fall, concluding that the Gilford Pines Condominium Association had no notice of the black ice. Moreover, in the second case, it is similar to your scenario, where the Gilford Pines Condominium Association followed a similar approach with regular inspections and no reports of icy conditions before the fall, which concludes that the association had no reason to foresee the black ice as a potential hazard. For these two cases, like the property owners in the first and second cases, it becomes clear that Gilford Pines conducted regular inspections and maintenance, including snow removal. There were no prior reports or complaints of icy conditions, similar to the lack of prior incidents and the absence of any observed substance. Just as the court found no duty to continuously monitor for naturally occurring ice formation from a drainage, Gilford Pines cannot be expected to constantly inspect the sudden formation of black ice unexpectedly. If I were to go to a court to argue your case with these key facts, you may not succeed in your case due to the lack of notice and that Gilford Pines cannot be expected to continuously inspect the black ice formation. A key fact in the second case demonstrates that the property owner had no previous reports or complaints of ice on the property even after inspections. Determining whether or not Gilford Pines had reports or complaints of the black ice shows whether or not Gilford Pines had notice or knew about the forming of the black ice on the floor, before your fall. Similarly, in the third case, with the details given to me in the interview, it seems like you cannot establish when the ice formed or if it had been reported to the association before the fall. This inability to pinpoint the duration of the hazardous condition is crucial to determine if your claim is valid. Without evidence regarding the ice's formation time or any prior notice, it is difficult to argue based on your claims that the association had constructive notice of the hazardous black ice before your fall. The mere fact that the ice existed at the time of the fall is insufficient and you have failed to demonstrate that Gilford Pines knew or should have known of the dangerous condition. Given the similarities between your situation and the circumstances in these cases—particularly the lack of evidence regarding the duration of the black ice and the presence of regular inspections by Gilford Pines—it is probable that you will not be successful on your liability against Gilford Pines to the court. Unfortunately, with the analysis shown, Gilford Pines

can build its defense on the lack of notice and mirroring the defenses similar to the three cases and argue that they did not know the black ice before Hastings' fall and that their regular inspections and maintenance routines, including snow removal, as evidence of their reasonable care. Since there were no prior complaints or reports about icy conditions in the area, it supports Gilford Pines' claim of no notice before your fall. In contrast, if you were to present other evidence not present in these cases—testimony from witnesses who saw the ice forming and reported it to Gilford Pines, or evidence demonstrating a pattern of recurring ice formation in the specific location—the court might find that Gilford Pines had notice and your argument will be successful. For instance, I found a piece of new evidence that may help with your case to counter the outcome of failing. In the past interview, you mentioned the slip-and-fall occurred at 7 a.m., which means that since it was during the after or before sunrise, the visibility in the area was not great. This new piece of evidence shows that if you were not able to see the pathway, it may demonstrate that slip-and-fall cases by the black ice could not be foreseeable, and the Gilford Pines' inspections would have difficulty identifying it. However, you mention that even though the asphalt sidewalks had been cleared of the snow, the pathways had been sanded, where Gilford Pines may argue that the sanding warned invitees of the hazards, demonstrating it was previously slippery. Since it is previously slippery, it may show that Gilford Pines had notice of the hazardous conditions due to the sanded pathway, and consider whether sanding the pathway is an action of warning invitees. When considering this counter argument and this new evidence, the court would likely rule in favor of you if there were visibility issues due to Gilford Pines' sanding and no warnings about the ice to invitees. This new evidence shown to the court can help determine if the area was sanded before, was less slippery than after the area was sanded. If it shows that the pathway without being sanded is slippery, this can demonstrate that the property owner had notice of an unsanded pathway being hazardous. Additionally, it will demonstrate if sanding the pathway makes a difference in causing the slip-and-fall due to a slippery area and is considered a warning to invitees before walking the area. If the court finds that the area was not sanded properly to warn invitees to demonstrate slipperiness even before sanding the area, we can argue that Gilford Pines failed to properly warn invitees and failed to remove the hazard by noticing it beforehand. This would change the outcome of your case in court where Gilford Pines is liable for your injuries sustained on their property and must reimburse you with your medical expenses and additional relief that the court deems proper.

I hope that this letter about Maryland negligence law of slip-and-fall cases and my analysis of your case is helpful. With the information provided for your case during the interview and the comparisons of past cases that the courts will consider, there is a high chance that you will not be successful in filing a lawsuit against the Gilford Pines Condominium Association to provide remedies to you, as there is no evidence of actual or constructive notice of black ice. The absence of prior complaints or reports, along with no indication that the ice had been present long enough to make notice, means the association could not have foreseen the hazard. Continuous inspection is not a duty for the property owner unless exceptional circumstances exist. While reasonable inspections are required, an injured party must prove the inspections would have allowed the

owner to discover the hazard and take action to remedy or warn against it. However, you could be successful in court under exceptional circumstances, if you were to present other evidence not present in the past three cases mentioned, such as the sanded pathway scenario concerning the visibility of the area. If you have any other new evidence to argue in court about your case, please contact me and provide the information so that we can change the outcome, where you would be successful in winning the case against Gilford Pines. Any new information will allow me to adjust the current analysis and advise you how to proceed with your case. Please feel free to contact me if you have any additional questions and let me know when you are available to discuss your case.

Best regards,

Alice Chong, Esq.

References

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